

		The Court DENIES the Defendant's Motion to Set Aside Judgment After Trial. Plaintiff is ordered to provide notice of the Court's ruling.
10	30-2026-01578705 VAOC Newport Plaza, LP vs. Tate	The Court has read and considered the Defendant's Motion for Attorneys' Fees and Costs After Judgment (ROA 47), Plaintiff's Opposition (ROA 60), and Defendant's Reply to the Opposition (ROA 64). The Court takes Judicial Notice of the Complaint (ROA 2), 7/28/2026 Minute Order, and 8/26/2026 Minute Order. As a threshold matter, although Plaintiff checked item 7(b) on the Complaint (ROA 2), indicating that the tenancy was subject to the Tenant Protection Act of 2019, the Court did not make a finding at trial that the Tenant Protection Act applied to this matter. The Court finds, instead, that California Code of Civil Procedure section 1946.2(e)(2) applies to the subject property because the facility is a licensed residential care facility for the elderly. Plaintiff also identifies several inaccuracies and vague references in Defendant's moving papers, including the reference to a nonexistent item 6(k) of the lease. Defendant does not identify the purportedly "correct" or applicable provision of the Residency Agreement in his Reply. Nor did Defendant attach the Residency Agreement to the motion or request judicial notice of the agreement. The Court is not required to independently search the record for evidence or documents a moving party references but fails to submit in support of the requested relief. The moving party must identify and provide the evidence and legal authority on which the requested relief is based. The trial was held on July 28, 2026, more than one month ago. This is Defendant's third version of the Motion for Attorney's Fees. Defendant therefore has had ample time and opportunity to present a motion that is sufficiently reasoned and supported by applicable legal authority and the record. Defendant also argues in Reply that Plaintiff requested attorney's fees in the Complaint. That assertion does not, by itself, establish a basis for an award of attorney's fees to Defendant. A party's request for attorney's fees must be supported by applicable statutory or contractual authority. Plaintiff's request for attorney's fees does not establish that Defendant is likewise entitled to them. Defendant has not identified the applicable provision of the Residency Agreement authorizing an award of attorney's fees to the prevailing party, and Defendant has not provided statutory authority supporting such an award. Accordingly, the Court finds that Defendant has not established a legal or contractual basis for the requested attorney's fees. The Court DENIES the Motion for Attorneys Fees. The Court finds that Defendant Karl Tate was the prevailing party at trial and awards court costs of \$225 payable by the Plaintiff, VAOC Newport Plaza, LP. Parties waive notice.